

APPEALS, COMPLAINTS AND DISPUTES**1. Purpose and Scope**

The purpose of this document is to define how appeals, complaints and disputes are handled by mPowerRatings. This procedure shall ensure that an appeal/complaint/dispute is investigated, documented, corrective actions implemented, and outcomes communicated to the relevant people.

2. Definitions

- an appeal is against a technical issue relating to the score.
- a complaint relates to procedure.
- a dispute relates to finding closure to the appeal or complaint should either party does not accept the outcome.

3. Description**Policy, Procedure and implementation guidelines:**

The appeals/complaints/disputes process will be handled in a non-discriminatory manner and will in no way prejudice the third party who has lodged the appeal complaint/dispute. mPowerRatings acknowledges that appeals/complaints/disputes will be handled confidentially and that all appeals/complaints/disputes will be investigated in accordance to this document.

Appeals

1. Measured entities may appeal, by email to info@mpowerratings.co.za, on the Reporting of the Complaint, Appeal and Dispute form, within 5 working days of receiving their B-BBEE Certificate and Final Report.
2. In some instances, an appeal may be lodged against the verification outcome not related to the Preliminary Report (i.e., Appeal against scoring on a BEE Certificate).
3. The appeal shall be acknowledged, in writing, by the Sales and Marketing Manager within 3 working days of receipt.
4. The Sales and Marketing Manager shall forward the appeal to the Appeals and Complaint Committee to conduct a review of the measured entities' file and if necessary, carry out an on-site evaluation to establish the validity of the appeal.
5. Any member of the Appeals and Complaints Committee which was involved in the rating of the appellant will recuse them self from the process.
6. The Director will make use of the relevant document Complaints, Appeals, Dispute Register (F045) to record the appeal.
7. The decision made by the Committee will determine the process to be followed and remedial actions to be implemented.

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8. The appeal should be resolved within 30 working days of receipt.
9. In the event of additional time being needed the measured entity will be informed thereof and the reasons therefore given in writing by the Director.
10. Findings will be discussed and agreed on by the members of the Appeals and Complaints Committee and the outcome communicated to the measured entity by written communication from the Director within 24 hours of the decision being made.
11. The Sales and Marketing Manager will complete the F120 form "Report of Complaints, Appeals and Disputes" with the process followed and remedial actions implemented as per the decision made by the committee, within 24 hours.
12. If the appeal finding still confirms our original rating, then the measured entity will be informed in writing by the Director within 24 hours of the decision being made.
13. Should the finding be in the clients favour then the Director, via email, will notify the verification analyst appointed to the rating, who will affect the changes, and follow the procedure as documented in Step 13 of the Verification Process (Document F214).
14. mPowerRatings, through the appointed committee, retains responsibility for all decisions at all levels of this process.

Complaints

1. Clients may lodge a complaint, by email to info@mpowerratings.co.za, on the Reporting of the Complaint, Appeal and Dispute form.
2. Complaints will be recorded in the Complaints, Appeals, and Dispute Register (F045) by the Sales and Marketing Manager within 24 hours of receipt of the complaint.
3. The complaint shall be acknowledged, in writing, by the Sales and Marketing Manager within 5 working days of receipt.
4. The Sales and Marketing Manager shall forward the complaint to the Appeals and Complaint Committee to investigate in order to determine the basis of the complaint.
5. Any member of the Appeals and Complaints Committee which was involved in the complaint of the appellant will recuse them self from the process.
6. The Sales and Marketing Manager will complete the Complaints, Appeals, and Dispute Register (F045) to record the complaint,
7. The Director will complete the F120 form "Report of Complaints, Appeals and Disputes" with the process followed and remedial actions implemented as per the decision made by the committee, within 24 hours.
8. The complaint should be resolved within 30 working days of receipt.
9. In the event of additional time being needed the complainant will be informed thereof and the reasons therefore given in writing, by the Director.
10. Findings will be discussed and agreed by the members of the committee and the outcome communicated to the complainant by written communication within 24 hours.
11. The result of the outcome will, if justified in favor of the complainant, result in a root cause analysis in order to address the symptoms of the problem.
12. The committee retains responsibility for all decisions at all levels of this process.

APPEALS, COMPLAINTS AND DISPUTES**Disputes**

1. Clients may lodge a dispute, by email to info@mpowerratings.co.za, on the Reporting of the Complaint, Appeal and Dispute form.
2. The dispute shall be acknowledged, in writing, by the Sales and Marketing Manager within 5 working days of receipt.
3. The Sales and Marketing Manager shall forward the dispute to the Appeals and Complaint Committee to investigate in order to determine the basis of the dispute.
4. Any member of the Appeals and Complaints Committee which was involved in the dispute of the appellant will recuse them self from the process.
5. The Sales and Marketing Manager will complete the Complaints, Appeals, and Dispute Register (F045) to record the dispute, the process followed, and remedial actions implemented within 24 hours of receipt.
6. The dispute should be resolved within 30 working days of receipt.
7. In the event of additional time being needed the complainant will be informed thereof and the reasons therefore in writing, by the Director.
8. Findings will be discussed and agreed on by the members and the outcome communicated to the complainant by written communication by the Director within 24hours of the committee's decision.
9. The Director will complete the F120 form "Report of Complaints, Appeals and Disputes" with the process followed and remedial actions implemented as per the decision made by the committee, within 24 hours.
10. The result of the outcome, if the dispute is justified in favor of the complainant, will result in a root cause analysis in order to address the symptom of the problem and to take remedial action.
11. The committee retains responsibility for all decisions at all levels of this process.

4. Responsible Persons

Director	Sales and Marketing Manager

5. Conclusion

This policy will feed into the Management Review Meetings.